भारतीय गैर न्यायिक

एक सौ रुपये

Rs. 100

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ONE HUNDRED RUPEES

सत्यमेव जयते

भारत INDIA

INDIA NON JUDICIAL

தமிழ்நாடு तमिलनाडु TAMILNADU

SRICITY PVT. LTD.

AT 926092

A. ROUFBASHA, B.A.,
STAMP VENDOR LIC No: 8/B3
NEW No: 17, OLD No: 9,
P.P.V. KOIL STREET, MYLAPO
CHENNAI-600 004. Ph: 24982

SERVICES AND MAINTENANCE AGREEMENT

THIS SERVICES AND MAINTENANCE AGREEMENT ("the AGREEMENT") is entered into on 13.07.2015

BETWEEN

Sri City (P) Limited, a company registered under the Companies Act, 1956 and having its registered office at 85, Kutchery Road, Mylapore, Chennai 600004, (having PAN AAJCS8887M and CIN U45201TN2005PTC057627), represented by its authorised signatory, Mr R Janardhana Reddy, son of late Mr N Ramanatha Reddy, aged about 63 years, (hereinafter referred to as "**the LESSOR/DEVELOPER**", which term shall, unless the context otherwise requires, mean and include its representatives, administrators, successors-in-interest and assigns on the one part)

AND

Nucleus Satellite Communications (Madras) Pvt. Ltd., a company registered under the Companies Act, 1956, having its registered office at PO 1505, Kumaran Nagar, Chemmencherry, Chennai 600 119, (having PAN AAACN9960D and CIN U74999TN1997PTC038400), represented herein by its Chief Executive Officer, Mr V Raman, (hereinafter referred to as "**the LESSEE/ALLOTTEE**", which term shall, unless the context otherwise requires, mean and include its representatives, administrators, successors-in-interest and assigns on the other part).

For Nucleus Satellite Communications (Madras) Pvt. Ltd.

V. RAMAN
Managing Director

For SRICITY PRIVATE LIMITED

Authorised Signatory

WHEREAS:

a. The Lessor owns a large extent of lands in Varadaiahpalem & Satyavedu Mandals, Chittoor District, Andhra Pradesh for the development of industrial park, hereinafter referred to as Sri City.

b. Vide Lease Deed dated 13.07.2015, the Parties have agreed to certain terms and conditions upon and subject to which, the Lessor has granted a lease of and the Lessee has taken on lease, the Lease Land, on the terms and subject to the conditions contained in the Lease Deed.

c. The Lessor has undertaken to operate and maintain the Common Facilities and Amenities and the Common Areas and Open Spaces in Sri City for the benefit of all occupants in Sri City (including the Lessee) and to provide O&M Services and Water Supply Services to all occupants in Sri City (including the Lessee).

d. The Lessee has agreed to appoint the Lessor to provide the O&M Services and the Water Supply Services and the Lessor has agreed to provide the O&M Services and Water Supply Services to the Lessee, on and subject to the terms and conditions hereinafter appearing.

e. The parties desired to reduce their understanding into writing as under.

NOW THEREFORE THIS AGREEMENT WITNESSETH AS FOLLOWS:

1. **DEFINITIONS**

The following words and terms will, when used in this Agreement, have the meanings as set forth herein below:

a. "Agreement" or "this Agreement" shall mean this Agreement and any of the Schedules thereof and shall include any modifications, alterations, additions or deletions thereto made in writing after the date of the execution of this Agreement, if such modifications, alterations, additions or deletions are made with due consent of the other parties and such consent has been placed on record;

b. "Applicable Law" shall mean any applicable National / State / Municipal / Local Bodies Statutes, Laws, Bye-laws, Regulations, Ordinances, Rules, Orders, Delegated legislation, Directives and Guidelines (to the extent it is mandatory), Policies (to the extent it is mandatory) or Codes (including without limitation foreign exchange or currency restrictions) of any Statutory Authority, whether now or hereafter in effect;

c. "Common Areas and Open Spaces" shall mean such land within Sri City that has been utilised or identified for utilization in accordance with the layout plan of Sri City with such modifications, changes and revisions made from time to time for the creation of roads, pedestrian walkways, storm water drains, green belts, landscaping and for installation of common facilities and amenities such as street lights, ducting, sewage treatment plants, sewer networks, Water Supply Facilities within Sri City, other than those within the said Plot;

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d. "Common Facilities and Amenities" shall mean roads, pedestrian walkways, streetlights, storm water drains, ducting, avenue trees, landscaping, sewage treatment plants and sewer networks, Water Supply Facilities and other similar facilities and amenities in Sri City, other than those within the Plot ;

e. "Financial Year" shall mean the period commencing from the 1st day of April of a calendar year and ending on the 31st day of March of the following calendar year;

f. "O&M Charges" shall mean the charges payable by the LESSEE/ALLOTTEE in respect of the O&M Services;

g. "O&M Services" shall mean operation and maintenance activities of Common Facilities and Amenities (excluding Water Supply Facilities) more fully described in *Schedule B;*

h. "Parties" shall mean the parties to this Agreement;

i. "Person" shall mean and include any individual, partnership, corporation, company, unincorporated organisation or association, trust or other entity;

j. "Plot" shall mean the piece and parcel of land leased out to the LESSEE/ALLOTTEE described in Schedule A;

k. "Security Deposit" shall mean the amounts payable by the LESSEE/ALLOTTEE as set out in Schedule C

l. "Services" shall mean the O&M Services and/or Water Supply Services;

m. "Water Supply Facilities" shall mean and include water storage reservoirs, pre identified wells, water treatment plants, water distribution networks, pumps and motors, related electrical and mechanical installations, in Sri City;

n. "Water Supply Charges" shall mean the charges payable by the LESSEE/ALLOTTEE in respect of the Water Supply Services;

o. "Water Supply Services" shall mean the service of supply of water to the LESSEE/ALLOTTEE conforming to the Central Public Health & Environmental Engineering Organisation ("CPHEEO") standards more fully described in Schedule B;

2. PROVISION OF SERVICES BY LESSOR

a. The Lessee acknowledges and recognises that the Lessor has made and will be making huge and substantial investments for development of infrastructure and provision of Common Facilities and Amenities in the Common Areas and Open Spaces of Sri City. Therefore, the Lessee agrees that, in consideration of the provision, operation and maintenance of the Common Facilities and Amenities by the Lessor in accordance with this Agreement and the investments that the Lessor has made and will be making

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in Sri City and the Common Facilities and Amenities from time to time, the Lessor shall, subject to Applicable Law and the other terms of this Agreement, have the sole and exclusive rights to provide the Services, as long as such Services are duly and diligently carried out by the Lessor in the interest of the Lessee and or the other *occupants of Sri City.*

3. **CONSIDERATION & PAYMENT**

Subject to the details in Schedule C, the Lessee in consideration of the Services being provided by the Lessor shall pay the following:

a. O&M Charges of Rs.5,000/- (Rupees five thousand only) per acre per month for the maintenance of water, sewage, road networks and common area landscaping and upkeep. This is subject to revision based on actual costs incurred for the maintenance plus 10% service charge. The accounting process will be transparent and will be shared with all Sri City lessees as detailed out in Schedule C.

b. The LESSEE shall pay a sum of Rs.1,00,000/- (Rupees one lakh only) per acre towards refurbishment of capital equipment in the first quarter of every 6th year of the Lease period. This is subject to revision based on actual costs incurred for the refurbishment plus 10% service charge. The accounting process will be transparent and will be shared with all Sri City lessees.

c. The LESSEE/ALLOTTEE shall pay to the Lessor the Water Supply Charges and Power Supply Charges, based on the actual measured/metered consumption of water as set out and in the manner contained in Schedule C.

The above consideration shall be paid as follows:

d. O&M charges shall be paid at the beginning of each calendar month in advance;

e. The refurbishment costs (3.b above) to be paid at every 6th year will be paid as per the notice raised by the Lessor;

f. Water Supply Charges shall be paid, in advance, on receiving a demand for payment from the Lessor. It is clarified that the demand will be raised based on average of the past quarterly charges and any excess demand amount will be adjusted from the deposit held by the Lessor, with the Lessee topping up the deficit in the deposit amount within 7 days thereof.

g. The Lessee shall be liable to pay the above charges only after the Lessee has been handed over the possession of the Plot.

4. **SECURITY DEPOSIT**

a. The LESSEE/ALLOTTEE shall pay a Security Deposit in the manner contained in Schedule C. The LESSEE/ALLOTTEE shall pay the Security Deposit on or before or at the time of execution of this Agreement.

For Nucleus Satellite Communications (Madras) Pvt. Ltd.

V. RAMAN
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For SRICITY PRIVATE LIMITED

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b. The Lessor shall return the Security Deposit to the Lessee on the termination of the Lease Deed after deducting any valid dues left unpaid by the Lessee for the Services mentioned above, within 21 Days of termination of the Lease.

5. **COVENANTS OF THE LESSOR:**

a. The Lessor hereby guarantees and warrants that it is not subject to any restrictive covenants arising from its prior agreement/arrangement with any other party, whereby it is any way restricted to fulfil any of the obligations as stipulated in this Agreement. In this connection, the Lessor hereby further covenants that it has the full right, power and authority to enter into this Agreement and perform it in accordance with the terms hereof and neither this Agreement nor the performance thereof violates or constitutes a default under the provisions of any other Agreement to which it was/is a party or by which it is bound.

b. The Lessor warrants and represents that, subject to force majeure clause herein, it shall perform the Services sincerely, diligently and in a competent and professional manner and as per the prescribed standards and any other legal statute in force for the time being which is related to the Services and also exhibit a high standard of work and proper professional conduct in performing the Services under the terms and conditions of this Agreement.

6. **RIGHT OF ENTRY**

a. The LESSOR, its authorised representatives, its guests accompanied by the LESSOR's representatives or any other persons duly authorised by it shall have the right to enter upon and inspect/visit the Plot and the buildings during the currency of this agreement, with prior notice to the LESSEE/ALLOTTEE and after complying with the LESSEE/ALLOTTEE's security regulations in force.

7. **TERM OF THIS AGREEMENT**

a. This Agreement shall be effective from the date of its execution and shall be valid during the subsistence of the Lease Deed, unless the Lease Deed is terminated or this Agreement is terminated for the reasons stated in clause 8 below.

8. **TERMINATION**

a. This Agreement shall stand terminated on the termination of the Lease Deed. In addition to the above, this Agreement may be terminated by the Lessee if the Lessor fails to provide the Services.

9. **NON-PAYMENT OF CHARGES BY THE LESSEE**

a. In the event that the Lessee fails to pay the charges agreed under this Agreement for reasons attributable to the Lessee the Lessor shall have the right to stop providing the Services until the same is paid, However to invoke the above the Lessor shall give a written notice of one month to the Lessee informing them about the non-payment of the charges and if the Lessee still fails to pay the same, the Lessor may stop the

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provision of the Services by giving a notice of an additional 10 days, if the service charges are not paid within 10 days then this Agreement shall stand terminated.

10. **RELATIONSHIP**

a. Neither this Agreement nor any other agreement or arrangement of which it forms part, nor the performance by the parties of their respective obligations hereunder or there under, shall constitute a partnership between the parties hereto or between such parties (or either of them) and any one or more other persons. None of the parties shall have any authority (unless expressly conferred in writing and not for the time being revoked) to bind the other party as agent(s) or in any other capacity. None of the parties shall have any right or authority to accept any service of process or to receive any notices on behalf of the other parties or to enter into any commitments, undertakings, or agreements purporting to obligate other party in any way. Each party will be solely responsible for compliance with any laws, decrees, regulations or orders affecting the agents, representatives, employees or workers of such party.

11. **WAIVER**

a. Waiver by either party of any default by the other party in the performance of any provisions of this Agreement shall not operate or be construed as a waiver of any other default or further default and shall not be effective unless it is in writing and executed by a duly authorised representative of the party. Neither the failure by either party to insist on any occasion upon the performance of the terms, conditions and provisions of this Agreement nor time or other indulgence granted by any party to the other party shall act as a waiver of such breach or acceptance of any variation or the relinquishment of any such right or any other right hereunder, which shall remain in full force and effect.

12. **SEVERABILITY**

a. If any clause or provision of this Agreement shall be held invalid or unenforceable or illegal for any reason, this Agreement will remain otherwise in full force apart from such clause or provision which will be deemed to be deleted.

13. **FORCE MAJEURE**

a. The duties and obligations of the Lessor under this Agreement shall be suspended during such time as performance by the Lessor is prevented or impeded by major riots, civil commotion, rebellion, pestilence, Governmental action, war, hostility, acts of God beyond the control of the Lessor which could not have been foreseen or avoided by the exercise of due diligence and so it becomes impossible of performance;

b. In the event of any major riot or related happenings, it would be the obligation on the part of the Lessor to issue a notice in writing to invoke this clause and the same should have been at the minimum occurrence of say, for e.g., 3 to 4 times in a period of 15 days (for instance) for the clause to be made applicable. It is being further clarified and understood that in the event the Lessor is desirous of invoking this clause as a result of riots, civil commotion etc., it shall be the sole duty and obligation

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of the Lessor to produce sufficient proof before the Lessee that such an act has taken place and it has made it impossible for the Lessor to carry out its performance under this Agreement. In case the Lessor is unable to establish the same then it cannot invoke this clause;

c. If any suspension or delay in the work because of any Force Majeure event should continue for more than 60 consecutive days, either party might by giving 30 days prior written notice, request the other to consider modification of the Agreement to alleviate the hardship incurred by the protracted period of Force Majeure event.

14. NOTICES

a. Any notice or communication of any nature required to be sent by one party to the other shall be sent by registered post or courier to the addresses mentioned hereinabove or by e-mail at the following ids, addressed to the attention of the person mentioned below. Either party may change the contact details given herein by giving the other one week prior written notice.

   a. To the LESSOR - Mr R Nagarajan, CFO / Email: nagarajan.r@sricity.in
   b. To the LESSEE – Mr V Raman, CEO / Email: raman@nucsat.com

15. DISPUTES & ARBITRATION

a. In the event of any dispute or difference between the parties arising out of or in connection with this Agreement or with regard to performance of any obligations by either party, the parties hereto shall use their best efforts to resolve such dispute or difference amicably by mutual negotiations.

b. All disputes arising in connection with the Agreement that have not been amicably settled, within 30 days of occurrence thereof or as may be mutually agreed, shall be referred to arbitration. Each of the parties is entitled to appoint one Arbitrator and the presiding Arbitrator shall be appointed by the two such Arbitrators. The Arbitration shall be as per the provisions of Arbitration and Conciliation Act, 1996 (with such statutory amendment / modification thereof). The Arbitration shall be conducted in the English language and the seat of such Arbitration shall be in Chennai, India. The costs shall be as determined by the Arbitrators.

16. JURISDICTION

a. This Agreement shall be governed in accordance with laws of India. Subject to the above arbitration provision, the Courts situated at Chennai and their appeal Courts shall have the competent jurisdiction in respect of matters arising under this Agreement.

For Nucleus Satellite Communications (Madras) Pvt. Ltd.

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Managing Director

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SCHEDULE - A
(PLOT)

All that piece and parcel of the land totalling an extent of 8 acres situated in Mopurupalli Village, Varadaiahpalem Mandal, Chittoor District, Andhra Pradesh, comprised in the Survey Numbers, more fully set out in the Lease Deed

Bounded on the:

North by	:	**37.09m Cypipagel Boundary from North-East Corner & balance Sri City Land**
South by	:	**Sri City Land**
East by	:	**18 ROW from North-East Corner & 103.49m Be'Rollex Boundary & balance Sri City Land**
West by	:	**Sri City Land**

SCHEDULE B
(SERVICES)

The Services defined below pertain to the developed area (areas where infrastructure facilities are provided) in Sri City. The scope of Services shall be extended to other areas as and when the development of such areas is completed.

1. O&M OF COMMON INFRASTRUCTURE:

1. Maintenance & cleaning of roads, right-of-way and pedestrian walkways on a periodical basis.
2. Maintenance & cleaning of storm water drains.
3. Maintenance of street lightings
4. Maintenance of landscaping along the right-of-way.
5. Municipal solid waste (MSW) collection from designated sites (it shall be the responsibility of the LESSEE/ALLOTTEE to segregate MSW at its Plot and then deposit such segregated MSW from its Plot to the site designated by Lessor).

2. WATER SUPPLY SERVICES

The Water Supply Services will mean supply of water up to 100 Kilo Litres per day (KLD), currently estimated by the LESSEE/ALLOTTEE, conforming to CPHEEO standards. As part of the Water Supply Services, Lessor or its affiliates shall operate and maintain the Water Supply Facilities.

3. SEWAGE COLLECTION AND TREATMENT SERVICES

Sewage collection and treatment services will include the collection and treatment of 80 KLD, currently estimated by the LESSEE/ALLOTTEE. The sewage discharged by the LESSEE/ALLOTTEE shall conform to Andhra Pradesh Pollution Control Board (APPCB) Effluent Discharge standards. As per APPCB standards, sewage is estimated to be 80% of water supplied. If the LESSEE is using water for other

For Nucleus Satellite Communications (Madras) Pvt. Ltd.

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Director

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purposes, and as a result actual discharge is less than 80%, then LESSEE shall provide documentation to this effect.

4. MSW COLLECTION SERVICES

MSW collection services will include collection, segregation and disposal of solid waste from the LESSEE/ALLOTTEE. Solid waste shall conform to APPCB standards and shall not contain any hazardous waste.

5. POWER SUPPLY SERVICES

The LESSOR is purchasing power from Andhra Pradesh Southern Power Distribution Company Limited (APSPDCL) and other private power producers to provide power to its lessees. Power supply services will include providing power procured from various sources including APSPDCL.

SCHEDULE C
CHARGES

The quantum of charges for the Services will be revised proportionate to the area of development.

I. O&M CHARGES

1. The O&M Charges shall be Rs.5,000/- (Rupees five thousand only) per acre of the Plot per month for the current Financial Year. This is subject to revision based on actual costs incurred for the maintenance plus 10% service charge. The accounting process will be transparent and will be shared with all Sri City lessees.
2. The O&M Charges shall be payable from the date of handing over of the Plot to the LESSEE/ALLOTTEE .
3. The O&M Charges is exclusive of all taxes and levies. All taxes and levies as applicable on the O&M Services shall be borne by the LESSEE/ALLOTTEE.
4. The O&M Charges shall be escalated at the beginning of each Financial Year based on market data.
5. At the beginning of each month, the Lessor shall raise an invoice for the amount of O&M Charge due to Lessor for the O&M Services to be rendered for the subject month.

II. WATER SUPPLY CHARGES

1. The Water Supply Charges shall be Rs.35/- per kilo litre for the current Financial Year. This is subject to periodical review and revision.
2. The Water Supply Charges shall be payable from the date of handing over of the Plot to the LESSEE/ALLOTTEE.
3. The Water Supply Charges is exclusive of all taxes and levies. All taxes and levies as applicable on the Water Supply Services shall be borne by the LESSEE/ALLOTTEE.
4. The Water Supply Charges shall be escalated at the beginning of each Financial Year based on market rates.

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V. RAMAN
Managing Director

For SRICITY PRIVATE LIMITED

Authorised Signatory

5. At the beginning of each month, Lessor shall raise an invoice for the Water Supply Charge due to be paid to Lessor for that particular month. The invoice shall be based on average of past quarterly charges calculated on the number of units supplied as measured/metered to the LESSEE/ALLOTTEE.
6. The LESSEE/ALLOTTEE shall within seven (7) days of the receipt of the invoice be liable to make payment of the Water Supply Charge to Lessor.
7. The LESSEE agrees that any additional requirement of Water Supply Services shall be subject to the LESSOR agreeing to provide the same and shall be further subject to additional charges for such additional capacity, to be calculated at 50% more than the price agreed herein for the existing capacity.

III. SEWERAGE COLLECTION AND TREATMENT CHARGES

As determined based on the prevailing market rates and intimated by the LESSOR from time to time, payable by the LESSEE/ALLOTTEE within seven (7) days of the receipt of the invoice from the LESSOR. The LESSEE agrees that any additional requirement of Sewage Collection and Treatment Services shall be subject to the LESSOR agreeing to provide the same and shall be further subject to additional charges for such additional capacity, to be calculated at 50% more than the price agreed herein for the existing capacity.

IV. MUNICIPAL SOLID WASTE COLLECTION CHARGES

As determined based on the prevailing market rates and intimated by the LESSOR from time to time, payable by the LESSEE/ALLOTTEE within seven (7) days of the receipt of the invoice from the LESSOR. The LESSEE agrees that any additional requirement of MSW Collection Services shall be subject to the LESSOR agreeing to provide the same and shall be further subject to additional charges for such additional capacity, to be calculated at 50% more than the price agreed herein for the existing capacity.

V. POWER SUPPLY CHARGES

1. Power supply charges shall be as per latest tariffs of APSPDCL and Energy Regulatory Commission. Usage charges will be based on the actual demand and consumption. Bill will be paid as per LESSEE's actual usage.

2. In case the charges are payable by the LESSOR - At the beginning of each month, LESSOR shall raise an invoice for the Power Supply Charge due to be paid to LESSOR for that particular month. The invoice shall be based average of past quarterly charges calculated on the number of units supplied as measured/metered to the LESSEE/ALLOTTEE.

VI. SECURITY DEPOSIT

1. In order to secure the obligations of the LESSEE/ALLOTTEE to pay the Charges, the LESSEE/ALLOTTEE shall deposit and keep deposited with Lessor at all times, an amount of Rs.4,35,000/- comprising of (i) quarterly O&M Charge for the Plot amounting to Rs.1,20,000/- and (ii) estimated quarterly Water Supply Charges for the Plot amounting to Rs.3,15,000/-.

For Nucleus Satellite Communications (Madras) Pvt. Ltd.

V. RAMAN
Managing Director

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Authorised Signatory

2. The Security Deposit shall be interest free and Lessor shall review the amount of the Security Deposit every six months, in April and October every year. If on such review, the Security Deposit is found to be not equal to the quarterly charge comprising (i) and (ii) above, then such shortfall shall be made good within a period of seven (7) days from the written intimation by Lessor to the LESSEE/ALLOTTEE in this regard.

3. In case of any deposit amount being adjusted by the Lessor against the charges payable by the Lessee, the Lessee shall within 7 days from thereof make good such deficit so as to maintain the deposit amount as aforementioned.

VII. CAPITAL REFURBISHMENT / REPLACEMENT

The LESSEE shall pay a sum of Rs.1,00,000/- (Rupees one lakh only) per acre towards refurbishment of capital equipment payable in the first quarter of every 6th year of the lease period. This is subject to revision based on actual costs incurred for the refurbishment plus 10% service charge. The accounting process will be transparent and will be shared with all Sri City lessees.

VIII. TAXES, LEVIES, RATES, CHARGES

The above charges, costs, etc., are subject to applicable taxes, cess, etc., such as service tax. Further, the LESSEE/ALLOTTEE shall pay the land tax & building tax relating to the Plot and its proportionate share of Common Areas and Open Spaces as mutually agreed upon by Allottee and Developer. The accounting process will be transparent and shared with all the Lessees. Such charge, when demanded by the Government will be payable to Lessor, within 7 days from the date of such communication to the LESSEE/ALLOTTEE. It is understood that absence of issuance or receipt of any invoice mentioned herein shall not absolve the LESSEE's timely payment obligations or stated as a reason for non-payment of such charges.

IN WITNESS WHEREOF THE PARTIES HAVE SIGNED & SEALED THIS SERVICES & MAINTENANCE AGREEMENT IN DUPLICATE ON THE DAY, MONTH AND YEAR FIRST HEREINABOVE MENTIONED.

For Nucleus Satellite Communications (Madras) Pvt. Ltd.

For Nucleus Satellite Communications (Madras) Pvt. Ltd.

V. RAMAN
Managing Director

Authorised Signatory
V Raman
Chief Executive Officer

For Sri City (P) Ltd.,

For SRICITY PRIVATE LIMITED

Authorised Signatory

Authorised Signatory
R Janardhana Reddy

WITNESSES:

1. Signature, Name & Address

K. Baby
S/o K. Sudhakar
Gayathri Nagar
Kotapolur road
Sullurpet

2. Signature, Name & Address

NAVNEET RAMAN
P1, 4TH FLOOR, WHITE HOUSE, NEW NO 4
GANDHI NAGAR, ADYAR, CHENNAI 2